MEMORANDUM

To:	Partner O'Reilly
From:	****
Date:	November 17, 2019
Re:	Peter Bein – Massachusetts Recreational Use Statute

ISSUES PRESENTED

1. The Massachusetts recreational use statute grants cities immunity from negligence, if the injured party did not pay a fee to use the city's land. Here, our client, Peter Bein ("Bein"), paid the City of Arborville to register his daughters in a field hockey tournament on municipal property. Was Bein's payment to Arborville a fee under the statute?

2. The Massachusetts recreational use statute only applies to persons using land recreationally, which includes both active and passive pursuits that are not required to enable a paying customer's recreational activity. Here, Bein entered municipal property to watch his daughters play field hockey and to provide a picnic lunch for their team. Was Bein's attendance at the tournament recreational under the statute?

BRIEF ANSWER

1. Probably no. The Massachusetts recreational use statute grants cities immunity from negligence, so long as the injured party did not pay a fee to use the city's land. Here, Bein paid Arborville to register his daughters in a field hockey tournament on municipal property. However, Bein did not pay to attend, to observe, or to participate in the tournament himself. Therefore, Bein's payment to Arborville was probably not a fee under the statute because it was not for his own recreational use of the land.

2. Probably yes. The Massachusetts recreational use statute only applies to persons using land recreationally. Under the statute, recreational activities include both active pursuits (like playing sports) and passive pursuits (like watching sports). However, activities required to enable

a paying customer's recreational activity (like supervision) are not recreational. Here, Bein attended a field hockey tournament on municipal property, where he watched his daughters play field hockey and provided their team with a picnic lunch. Bein did not supervise anyone and the lunch he provided—although appreciated—was not required to enable the team's recreational activity: playing field hockey. Therefore, Bein's attendance at the tournament was probably recreational under the statute because his activities there were objectively recreational and were not required to enable the team's recreational activity.

STATEMENT OF FACTS

In July 2019, our client, Bein was severely injured when he tripped and fell at the Arborville Sports Fields ("Sports Fields"), where his two young daughters were participating in the Independence Day Field Hockey Tournament. O'Reilly Ltr. at 8.

On the morning of the tournament, Bein's two daughters rode their bicycles to the Sports Fields. Bein Interview at 3. Meanwhile, Bein stayed home most of the morning preparing a special lunch for his daughters' field hockey team, the "Bandits." *Id.* Bein arrived at the Sports Fields in time to watch the last thirty minutes of the Bandits' match. Bein Interview at 5. After the match ended, Bein followed the team from the field to the "picnic area" (an outdoor recreational space with picnic tables and trees), where they planned to eat the lunch that he had prepared. Bein Interview at 3. While walking alone on a paved road leading to the picnic area and carrying a large cooling container filled with the team's lunch, Bein tripped on a large crack, causing him to drop the cooling container, lose his balance, and fall. Thompson Interview at 6. Consequentially, Bein broke his hip and wrist. Bein Interview at 4.

The Sports Fields is an outdoor sports facility that is owned and operated by the City of Arborville. Thompson Interview at 7. On the day of Bein's injury, he did not pay Arborville to

enter the Sports Fields, to watch his daughters' match, or to participate in the field hockey tournament. Anderson Ltr. at 10. However, Bein had previously paid Arborville to register his two daughters in the tournament. Bein Interview at 5; See also Thompson Interview at 7.

Bein is much more involved with the Bandits than most parents. Thompson Interview at 6. Specifically, Bein voluntarily provides nutritional snacks for the Bandits to eat after their matches and practices, regularly attends the team's events, and engages with the players as a sort of friendly "team uncle." Bein Interview at 4; See also Thompson Interview at 6. Occasionally, the coaches ask Bein to transport players other than his daughters to matches, but only as a last resort. Thompson Interview at 6. Bein is not involved with the Bandits' coordination or training, which is handled exclusively by the team's two coaches. Bein Interview at 5. Both of the Bandits' coaches were present during the tournament and at the time of Bein's injury. Bein Interview at 4.

The firm has been representing Bein pro-bono and needs to determine the feasibility of continued representation on a contingency-fee arrangement. You have asked me to research the likelihood that the case will survive a motion for summary judgment by Arborville, claiming immunity from negligence under the Massachusetts recreational use statute.

DISCUSSION

Arborville is probably immune to negligence because Bein's payment was probably not a fee and his attendance at the tournament was probably recreational under the Massachusetts recreational use statute, which provides that:

> Any person having an interest in land . . . who lawfully permits the public to use such land for recreational . . . purposes without imposing a charge or fee therefor . . . shall not be liable for personal injuries . . . sustained by such members of the public . . . while on said land . . . .
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> . . . For the purposes of this section, "person" shall include the person having any interest in the land . . . and shall include, without limitation, any governmental body, agency or instrumentality, a nonprofit corporation, trust, association, corporation, company or other business organization . . . .

Mass. Gen. Laws ch. 21 § 17C (2009). The purpose of the statute is to "encourage landowners to permit broad, public, free use of land for recreational purposes by limiting their obligations to lawful visitors under the common law." *Murray v. Town of Hudson*, 34 N.E.3d 728, 732 (Mass. 2015).

1. The registration fee Bein paid Arborville was probably not a fee within the scope of the statute because it did not secure his own recreational use of the land.

Bein's payment to Arborville was probably not a fee under the recreational use statute because it was not made to enter the Sports Fields, to watch his daughters' match, or to participate in the field hockey tournament himself.

The recreational use statute provides that "[a] contribution or other voluntary payment not required to be made to use such land shall not be considered a charge or fee within the meaning of this section." § 17C(b). Generally, if an injured party pays a fee for his or her own recreational use of the land, the land provider is not immune from negligence. *Gerante v. 202 Sports Complex, L.L.C.*, 126 N.E.3d 1030, 1033 (Mass. App. Ct. 2019). Alternatively, if the injured party merely pays for the recreational use of another, the land provider is generally immune from negligence. *Seich v. Town of Canton*, 686 N.E.2d 981, 983 (Mass. 1997).

In *Seich*, the court found that a mother's payment to a town to register her child in a basketball league was not a fee within the scope of the recreational use statute. *Id.* at 982-83. The mother paid the town's recreation department a fee to register her daughter in a youth basketball league. *Id.* at 982. While attending one of her daughter's basketball games, the mother slipped on an icy sidewalk and fell on municipal property. *Id.* The town did not charge the mother to enter the gymnasium or to watch her daughter's basketball game. *Id.* at 983. Because the mother paid no fee for her own recreational activities—entering the gymnasium and watching her child's basketball game—the court determined that her payment was not a fee under the recreational use

statute. *Id.* at 982-83. Therefore, the court held that the town was immune to negligence and affirmed a summary judgment ruling in favor of the town. *Id.* at 983.

Comparable to the mother in *Seich*, who paid the town to register her daughter in a basketball league, Bein paid Arborville to register his daughters in a field hockey tournament. Like the mother in *Seich*, who slipped on an icy sidewalk, fell, and suffered injuries on municipal property, Bein tripped on a cracked road, fell, and broke his hip and wrist on municipal property. Just as the mother in *Seich* did not pay to enter the gymnasium or watch her daughter's game, Bein did not pay to enter the Sports Fields or watch his daughters' match. Because the court in *Seich* held that a registration fee paid for a one's child to participate in a recreational activity was not a fee under the statute, the court will probably find that Bein's payment to register his daughters in the field hockey tournament was not a fee under the statute.

In contrast, the court in *Amaral* held that a mother who purchased tickets for her children to ride go-carts at a commercial recreational facility was a "paying customer" under the statute, even though she did not pay to enter the facility. *Amaral v. Seekonk Grand Prix Corp.*, 44 N.E.3d 145, 148 (Mass. App. Ct. 2016). The mother accompanied her two minor children to the Seekonk Grand Prix Corporation ("Seekonk"), where she purchased go-cart racing tickets that her children later used. *Id.* at 146. Seekonk did not charge the mother to enter the facility or to watch her children go-cart race. *Id.* While the mother was standing beside a fence that enclosed the go-cart course and watching her children, a go-cart driven by a young girl went through the fence and hit her, resulting in severe injuries. *Id.* The court reasoned that because there was no indication that the mother could not have used the tickets herself, the mother's payment for the go-cart tickets was a fee under the statute. *Id.* at 148 n.5. The court cautioned that to find otherwise "would undermine the very purpose of the statute: to encourage landowners to permit broad, public, *free*

use of land for recreational purposes by limiting their obligations to lawful visitors under the common law." *Id.* at 148 (emphasis original). Therefore, the court did not find Seekonk immune from negligence and reversed a summary judgment ruling in favor of the facility. *Id.*

Bein's case is distinguishable from *Amaral*, even though both the mother in *Amaral* and Bein did not pay a fee to enter the land. Unlike the mother in *Amaral*, who purchased tickets that she could have used to go-cart race herself, Bein could not have used the registration fee he paid to participate in his daughters' field hockey match. Therefore, because Bein could not have qualified as a paying customer under the statute, like the mother in *Amaral*, the court is likely to find that Bein's payment was not a fee under the statute.

In sum, because Bein's payment to Arborville was neither to attend, to observe, nor to participate in the field hockey tournament, the payment was probably not a fee under the Massachusetts recreational use statute. Thus, the facts support Arborville's ability to successfully claim immunity from negligence.

2. Bein's attendance at the tournament was probably recreational under the statute because his activities were objectively recreational and non-supervisory.

Bein's attendance at the tournament—where he watched the end of his daughters' field hockey match and provided a picnic lunch for the Bandits—was probably recreational under the statute because his activities were objectively recreational pursuits not required to enable a paying customer's recreational activity (like supervision).

To determine if a person's activities are recreational under the statute, the person's subjective purpose (whether for work, transportation, learning, or some other subjectively non-recreational pursuit) is disregarded if the actor's behavior is objectively recreational and permitted by the park. *Ali v. City of Boston*, 804 N.E.2d 927, 932 (Mass. 2004). Applicable recreational activities include active pursuits (like playing sports) as well as passive pursuits, such as watching

sports, walking in a park, and picnicking. *Catanzarite v. City of Springfield*, 592 N.E.2d 752, 752-53 (Mass. App. Ct. 1992); *Amaral*, 44 N.E.3d at 148. Although, the extent to which merely watching others engage in recreational activity qualifies as a recreational activity itself is not clearly defined. *Seich*, 686 N.E.2d at 983 n.4; *Gerante*, 126 N.E.3d at 1036 n.6. Notably, activities that are effectively required to enable the recreational activity of paying customers (like supervision) are not recreational activities under the statute. *Amaral*, 44 N.E.3d at 148.

In *Gerante*, the court determined that a mother was a recreational user of the land because she provided no facts indicating that her role extended beyond that of a "mere spectator" at her son's sporting event. *Gerante*, 126 N.E.3d at 1032, 1035. The mother drove her son to an indoor sports facility (owned and operated by a trust) for his dekhockey game (an organized form of street hockey). *Id.* at 1031-32. The mother said that she "personally supervised the setup of the dekhockey rink at that location" and later watched the game from the bleachers. *Id.* at 1032. After the game ended, the mother fell from the bleachers and tore a ligament in her knee. *Id.* at 1031-32. In her complaint, the mother initially characterized herself as a "spectator." *Id.* at 1032. However, the mother later revised the complaint, referring to her role as "supervisor," without providing facts to support that description. *Id.* The court reasoned that the mother was a recreational user of the land because coaches and referees were present during the game and because the mother failed to factually support her claim that she was a supervisor or was otherwise required to be at the game. *Id.* at 1035-36. Therefore, because the mother was a recreational user within the scope of the statute, the court affirmed a summary judgment motion granting the sports facility immunity from negligence. *Id.* at 1036; See also *Ali*, 804 N.E.2d at 929-32 (Holding that a man who was injured while cycling through a municipal park—in route from grocery shopping—was a recreational user under the statute because he was engaged in an objectively recreational activity

permitted by the park, even though his subjective intent in entering the park was for the non-recreational activity of transportation).

Comparable to the mother in *Gerante*, who attended her son's game to do more than just observe, Bein attended his daughters' match not only to watch but also to provide a nutritional lunch for the entire team. Like the mother in *Gerante* felt that she was responsible to do more than just watch her son's game, Bein feels responsible for the Bandits' nutritional well-being. Similar to the mother in *Gerante*, who was injured while "supervising," Bein was injured while carrying a large cooler full of the Bandits' lunch. As in *Gerante*, where both coaches and referees were present during the game and at the time of the mother's injury, both of the Bandits' coaches were present during the match and at the time of Bein's injury. The mother in *Gerante* was not filling a required role at her son's game; similarly, although the delicious and nutritional lunches Bein voluntarily provides are "an invaluable contribution," his role as the provider of snacks is not required to enable the team's recreational activity: playing field hockey. Notably, unlike the mother in *Gerante*, who drove her son to his dekhockey game, Bein did not drive his daughters to their field hockey match. Therefore, like the court in *Gerante* found that the mother was a recreational user of the land because she could not provide facts supporting her claim to be more than a mere spectator, the court will also likely find that Bein's attendance at the tournament, which was not required to enable the recreational activity of his daughters' team, was recreational under the statute.

In contrast, in *Amaral*, the court held that the mother who funded, accompanied, and supervised her minor children's participation in go-carts racing at a commercial recreational facility was not a recreational user under the statute. *Amaral*, 44 N.E.3d at 146, 148. The mother accompanied her two minor children to the Seekonk Grand Prix Corporation ("Seekonk"), where

she purchased tickets for her children to go-cart race and remained to supervise them. *Id.* at 148. While the mother was standing beside a fence enclosing the go-cart course and supervising her children, a go-cart driven by a young girl went through the fence and hit her, resulting in severe injuries. *Id.* at 146. Because the mother was supervising her minor children, rather than engaging in the recreational activities that Seekonk offered, the court determined that she was not a recreational user. *Id.* at 148. Therefore, the court found that Seekonk was not immune to negligence and reversed a summary judgment ruling in favor of Seekonk. *Id.*

Unlike in *Amaral*, where the mother was at the facility during the entire time that her children were go-cart racing, Bein did not arrive at the Sports Fields until near the end of his children's field hockey match. Distinct from *Amaral*, where the mother was the only adult responsible for the care of her minor children while they go-cart raced, the Bandits' two coaches were present during the team's match and subsequent picnic lunch. Unlike the mother in *Amaral*, who supervised her children, Bein engages with the Bandits as a sort of friendly "team uncle," while the team's two coaches handle all coordination and training. Therefore, because Bein was not a supervisor like the mother in *Amaral*, the court will likely find that Bein's attendance at the tournament was recreational under the statute.

In sum, because Bein attended the tournament to engage in objectively recreational activities and not to provide services required to enable the recreational activity of paying customers (like supervision), his attendance was probably recreational under the Massachusetts recreational use statute. Thus, the facts support Arborville's ability to successfully claim immunity from negligence.

CONCLUSION

The City of Arborville will likely be able to successfully assert immunity from negligence because Bein's payment was probably not a fee and his attendance at the tournament was probably recreational under the Massachusetts recreational use statute. First, Bein did not pay Arborville to attend, to observe, or to participate in the field hockey tournament. Second, Bein's activities (to watch his daughters play field hockey and to provide a picnic lunch for their team) were objectively recreational and were not required to facilitate the team's recreational use of the land. Therefore, the firm should probably not represent Bein on a contingency-fee arrangement for his negligence claim against Arborville.